

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COREY DEROUNCE ROYAL-MILLION,

Petitioner

VS.

TONY JOHN ROYAL-MILLION,

Respondent

) Case Number: FDI-24-800431

) Hearing Date: September 22, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: JUDITH HARDING

REQUEST FOR ORDER RE: ORDER SHORTENING TIME FOR HEARING; SANCTIONS;
PROPERTY TRANSFER

TENTATIVE RULING

The parties are ordered to appear on 9/22/2026 at 9am in Department 404 in-person or by Zoom video to discuss Respondent's request that the Court "make a final pickup order to be used under civil standby." If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties in this matter are Corey Royal-Million (Petitioner) and Tony Royal-Million (Respondent). The parties married on 10/22/2017. Petitioner contends the parties separated on 6/26/2023, for a marriage of 5 years and 8 months. Respondent asserts the parties separated on 1/22/2019, for a marriage of 1 year and 3 months. The parties have no minor children in common. Both parties are self-represented.
- 2) On 1/22/2019, a Criminal Protective Order was issued for Respondent's protection against Petitioner. The CPO expired on 1/22/2022.

- 1 3) On 7/29/2021, in related Case No. FDV-21-815745, the Court issued a 3-year Restraining Order
2 After Hearing for Petitioner's protection against Respondent. The restraining order expired on
3 7/28/2024.
- 4 4) On 11/21/2025, in related Case No. FDV-17-813401, the Court issued a 5-year Restraining Order
5 After Hearing for Respondent's protection against Petitioner. The restraining order expires on
6 11/21/2030.
- 7 5) At the prior 7/28/2026 hearing (per the Findings and Order After Hearing filed 7/28/2026), the
8 Court made the following orders:
- 9 a. The Court finds that the Boosted scooter is Petitioner's separate property.
- 10 b. Per agreement of the parties, Petitioner will go to 839 Geary Blvd. San Francisco, CA at
11 1:30 p.m. on 7/29/26 to pick up the scooter and drone from the store owner Sue or Chedli
12 who will assist with the exchange. The scooter will be delivered in the condition as
13 described by Respondent at the beginning of the hearing.
- 14 6) On 7/29/2026, Petitioner filed a declaration asking the Court to reconsider the portion of the order
15 allowing Respondent to retain the battery for the scooter. Petitioner states, "At the hearing,
16 Respondent argued that he should keep the battery because he paid for it and assembled it... The
17 scooter was originally purchased by David Rodriguez in February 2020 with a four-year
18 manufacturer's warranty. Mr. Rodriguez gifted the complete scooter to me in July 2022. At the
19 time of the gift, approximately two years of warranty coverage remained. After Respondent took
20 possession of the scooter, I repeatedly requested that it be returned. Instead, Respondent retained
21 possession for approximately two years while using the scooter himself and refusing to return my
22 separate property... Had Respondent returned the scooter when first requested, I could have
23 sought warranty repairs on replacement while the warranty remained in effect and replacement
24 batteries were still available. Instead, because Respondent retained the scooter until after the
25 warranty expired, Boosted ceased manufacturing replacement batteries, and replacement batteries
26 have become extremely difficult or impossible to obtain. As a result, returning the scooter without
27 its battery leaves me with property that cannot reasonably be used for its intended purpose. The
28 Court correctly determined that the scooter is my separate property. However, permitting
29 Respondent to retain the battery substantially defeats the practical benefit of that ruling because

1 the battery is an essential operating component of the scooter. This result was caused not by any
2 action on my part, but by Respondent's prolonged retention of my property after repeated requests
3 for its return. For these reasons, I respectfully request that the Court modify its order and require
4 Respondent to return the battery with the scooter. If the Court determines Respondent should
5 retain the battery, I alternatively request that Respondent be ordered to pay the reasonable cost of
6 restoring the scooter to working condition. If restoration is no longer reasonably possible because
7 compatible batteries are obsolete or unavailable, I request that the Court order Respondent to pay
8 the fair market value of a complete, operational Boosted Rev scooter.”

- 9 7) On 7/30/2026, Respondent filed a Request for Order. Respondent states that Petitioner failed to
10 appear on 7/29/2026 to retrieve the scooter. Respondent states that Petitioner’s request for
11 reconsideration fails as a matter of law under Code of Civil Procedure section 1008 because
12 Petitioner “openly admits he is simply raising arguments he failed to bring up at the hearing.”
13 Respondent states that he believes the “Allstate 4-Year Extended Protection Plan” submitted as
14 Exhibit A to Petitioner’s 7/29/2026 declaration is fabricated. Respondent states Boosted Inc.
15 never offered or authorized a 4-year extended manufacturer’s warranty on the Boosted Rev
16 scooter and “consumer protections on their product lines were strictly capped at a maximum of 2
17 years.” Respondent also states that even if such a contract existed, it is legally irrelevant because
18 “Boosted Inc. filed for bankruptcy in March 2020 rendering all baseline and operational
19 consumer warranties legally null, void, and entirely unenforceable years before Petitioner left the
20 vehicle with [Respondent].” Respondent further states that Petitioner destroyed the vehicle’s
21 integrity before leaving it with Respondent; the handlebars, stem, internal electronics, and
22 original battery were all damaged. Respondent states that following the parties’ date of
23 separation, he bought and paid for “rare components and the custom battery using separate 2024
24 funds... nearly four years after Boosted ceased operations...” Respondent states he “graciously
25 and voluntarily waived any right or request for monetary compensation during the July 28, 2026
26 court hearing... I stated in my oral argument to the Court that the scooter would include the new,
27 fully operational replacement handlebars/head unit and the working folding mechanism/stem that
28 I personally sourced. Crucially, I specifically and explicitly stated on the record that the custom
29

battery was excluded from this transfer. Petitioner openly agreed to these exact terms in open court before the judge.” Respondent asks the Court to make the following orders:

- a. Deny Petitioner’s request for reconsideration.
- b. Confirm the custom vehicle battery as Respondent’s sole and separate property.
- c. Make a final pickup order to be used under civil standby.
- d. Award Respondent \$500 in Family Code section 271 sanctions for Petitioner’s bad faith frustration of settlement.

8) On 8/3/2026, Petitioner filed a Responsive Declaration. Petitioner states that on 7/29/2026, he was attending a “previously scheduled meeting with my Deputy Public Defender, Charles Balara, from approximately 1:30 p.m. until 5:00 p.m. to prepare for my criminal court hearing scheduled for July 31, 2026.” Petitioner attached as Exhibit A letter signed by Charles Balara, Deputy Public Defender dated 7/31/2026 wherein Mr. Balara states, “I am Deputy Public Defender here in San Francisco. I currently represent Mr. Corey Royalmillion. I’m writing to inform you that Mr. Royalmillion was meeting with me to discuss his legal matters on July 29, 2026, from approximately 1:30pm until 5pm. It was the only day and time I had available to meet with him. It was imperative that he meet with me that day to prepare for an upcoming substantive hearing that took place on July 31, 2026.” Petitioner also states that during the 7/28/2026 hearing, Respondent never informed the Court that Eric McDougald would be acting on Respondent’s behalf or would be present during the exchange. Petitioner states that had he known, he would have immediately objected due to safety concerns regarding Mr. McDougald, who Petitioner states previously assaulted him. Petitioner states that Respondent made unauthorized repairs to the scooter and then attempted to charge him for the repairs. Petitioner states that the scooter was delivered to Respondent with its battery installed. Petitioner states that the warranty that was on the scooter was a “separately purchased third-party extended protection plan administered through Allstate,” not Boosted’s manufacturer’s warranty.

9) On 8/3/2026, Petitioner filed a Supplemental Declaration making additional (and repeated) argument regarding his request for reconsideration.

10) On 8/7/2026, Respondent filed a Supplemental Declaration. Respondent states that at no point during the text exchanges between Eric McDougald and Petitioner did Petitioner inform Mr.

1 McDougald that he was detained in an appointment and Petitioner also did not request a modified
2 pickup window. Respondent also states that Mr. McDouglad was not present at the store where
3 the Court had ordered the exchange to take place. Respondent continues to dispute the veracity of
4 Petitioner's claimed warranty. Respondent states, "The replacement custom battery is not a
5 repaired component of the original vehicle; it is an entirely distinct, newly fabricated piece of
6 personal property constructed solely by me in 2024 using post-separation separate funds (Family
7 Code § 771)—well after our separation (occurring after both my asserted date of separation and
8 Petitioner's claimed June 2023 date). Petitioner holds zero ownership interest in this separate
9 property."

10 11) On 8/7/2026, Respondent filed Written Evidentiary Objections to Petitioner's Supplemental
11 Declaration objecting to Exhibit A of Petitioner's 8/3/2026 Responsive Declaration on the
12 grounds of inadmissible hearsay, lack of foundation, and lack of authentication and personal
13 knowledge.

14 **B. Findings and Order**

- 15 1) Respondent's evidentiary objections to Exhibit A of Petitioner's 8/3/2026 Responsive Declaration
16 are sustained.
- 17 2) Petitioner's request for the Court to reconsider its orders made at the 7/28/2026 hearing is denied
18 on the following bases. First, Petitioner did not file the requisite Request for Order to make that
19 request. Second, the time has expired to file a motion for reconsideration under Code of Civil
20 Procedure section 1008. Finally, Petitioner has failed to identify new or different facts,
21 circumstances, or law that could not have been raised at the 7/28/2026 hearing. This order is
22 made without prejudice to Petitioner's requests, made in his 7/29/2026 declaration that
23 Respondent be ordered "to pay the reasonable cost of restoring the scooter to working condition"
24 or "to pay the fair market value of a complete, operational Boosted Rev scooter." Petitioner may
25 raise these requests at trial.
- 26 3) At the 7/28/2026 hearing, the Court ordered Respondent to return the Boosted scooter to
27 Petitioner "in the condition as described by Respondent at the beginning of the hearing," in other
28 words, without the battery that Respondent represents was a custom replacement battery
29 purchased by Respondent. The Court made no findings or orders regarding the characterization of

1 the battery that Respondent represents was a custom replacement battery purchased by
2 Respondent. The Court's jurisdiction over that issue is reserved for trial.

3 4) Respondent's request for \$500 in Family Code section 271 attorney's fees sanctions is denied as
4 Respondent has not shown that he has actually incurred attorney's fees due Petitioner's failure to
5 appear at the scheduled pickup of the scooter and drone.

6 **5) The parties are ordered to appear on 9/22/2026 at 9am in Department 404 in-person or by**
7 **Zoom video to discuss Respondent's request that the Court "make a final pickup order to**
8 **be used under civil standby." If a party chooses to appear by Zoom, that party must abide**
9 **by the Notice and Instructions for Remote Appearance in San Francisco Family Court set**
10 **forth above.**